



SELECT BOARD

SelectBoard@natickma.org ♦ (508) 647-6410

13 East Central St. Natick, MA 01760 ♦ www.natickma.gov

MEMORANDUM

To: Town Meeting members
From: Select Board
Date: October 21, 2025
RE: **2025 FATM Article 31 Motion B: Discussion and Consideration**

At its meeting on September 29, 2025, the Natick Select Board held thoughtful deliberation on Article 31, Motion B put forward by the Charter and Bylaw Review Committee (CBRC).

While the CBRC's proposal has merit in its intent, the Select Board believes there are existing approaches and strategies that are decidedly more straightforward to address the issues noted by the CBRC, as detailed below:

- The Select Board is committed to ensuring that Town boards and committees have timely access to Town Counsel, and if necessary special counsel, including those with specialized zoning and regulatory expertise.
- Per Article 22 of the Town Bylaws, the Select Board is the appointing authority for Town Counsel and special counsel, and often engages with special counsel as needed (e.g. alcohol licensing, cannabis, and litigation).
- The Select Board agrees that such specialized zoning expertise can and should be integrated within the existing Town Counsel framework to the extent possible.
- The Select Board acknowledges the work of the Community and Economic Development (CED) Director and Planning Board as they have been systematically revising and updating the Zoning Bylaws to provide Town Meeting (TM) with incremental changes based on the highest priorities so that Finance Committee and TM has the capacity to process these changes rather than review wholesale changes all at once. The CED Director and Planning Board continue to work to submit these zoning amendments to Town Counsel and others (e.g. the Finance Committee) in a timely and efficient manner to ensure ample time for a complete and thorough review in advance of Town Meeting.
- Appointing special/independent counsel in addition to Town Counsel for zoning article reviews poses risks. Disagreements and/or opposing legal opinions between the two could confuse Town Meeting members, lead to costly duplication of effort, and/or add potential liability to the Town.
- The Select Board is committed to working with its legislative representatives regarding the regulatory workload brought to bear by regional and statewide

zoning and development mandates, such as the MBTA Communities Act, Accessory Dwelling Units, and the Affordable Homes Act – which has added to the recent workload of CED, Town Counsel, and Town Meeting.

At its meeting on September 29, the Select Board heard Article 31 Motion B, which seeks to amend Town Bylaw Article 22 (Town Counsel) by adding an entirely new Section 9: Special Zoning Advisory Council. At that meeting, the CBRC Chair indicated that the CBRC had sought to amend the Town Bylaws to address the need for a dedicated expert legal resource to assist and advise on zoning decisions. The CBRC Chair further indicated that this proposed resource could assist certain other town boards and committees in drafting, reviewing, and voting on zoning bylaw amendments, and felt the complexity and volume of zoning changes necessitated this approach. The CBRC Chair indicated their belief that the highly technical nature of zoning required precision to avoid costly mistakes, and that, ideally, such a resource would assist the Select Board, Planning Board, Finance Committee, and Town Meeting by providing an objective legal expert to ensure accuracy. In the CBRC Chair's opinion, past reliance on one-off legal counsel proved ineffective.

During the Finance Committee hearing on this article for the 2025 Fall Annual Town Meeting, several Finance Committee members questioned the value of this proposal given that the Select Board is required to appoint Town Counsel each year and can already request specific expertise as needed (Article 22, Section 5 of the Bylaws). Per the Bylaws, the Select Board may, whenever they deem necessary, employ special and/or interim counsel to assist or act in place of Town Counsel.

When asked during the hearing whether the CBRC had reviewed Article 31, Motion B with the CED Director, Town Administrator, or Planning Board, the CBRC Chair said they had not. It appears that the CBRC declined to accept an invitation to discuss the article at a posted public Planning Board meeting as well.

The Finance Committee made no recommendation to Town Meeting for this article, displaying the lack of consensus regarding this item warranting further review. Given this, and for the reasons noted above, the **Select Board unanimously recommends that Town Meeting refer the Article to the Town Administrator and the Select Board for further consideration.**

In addition, the Select Board acknowledges the need for streamlined access to legal counsel on zoning issues (as well as other legal issues facing the Town) and is committed to working with the Planning Board, Town Administration and others to identify and remedy any obstacles that may limit such access.